

Chaldale Harbor District

BEFORE THE BOARD OF HARBOR COMMISSIONERS OF THE CHALDALE HARBOR DISTRICT. Decision and Order on Appeal from Denial of Reinstatement and from Entry of a Skip under the 2014 Tariff. Heard in open session 9 October 2018. Decided 13 November 2018.

Appearances

The appellant, Warren T. Auldbrook, appeared on his own behalf. The District appeared by Reuben Calloway, Harbormaster, and by Greta Fjell, Deputy Harbormaster. The record consists of the appeal file, the waiting-list register extract for the relevant period, the skip event register, the counter day logs for 14 through 18 May 2018, and the testimony heard on 9 October 2018.

I. Statement of the Case

1. The appellant has held position on the District's permanent moorage waiting list since 2006, ranked by application date. His recorded preferences were for a covered slip in Ledgport of 32 feet or greater, for his vessel, the MONARCH GALE, a 31.9-foot sloop of record.
2. On 14 May 2018, counter staff worked covered slip LP-0217, a 32-foot covered slip in Ledgport, following a termination. The appellant was then the highest-ranked applicant whose recorded preferences matched the slip.
3. The register entry for that date shows a skip entered against the appellant under the reason code then styled "vessel does not fit." The day log for 14 May 2018 contains the slip-worked entry and the clerk's initials. No skip justification file was assembled. The only writing in the appellant's file was a photocopy of a broker's listing for a different vessel, the WESTERLY CALL, 38 feet, which the appellant had discussed purchasing but had not purchased.
4. On 22 May 2018 the slip was offered to, and accepted by, the next-ranked applicant. The appellant learned of the offer in June 2018 and petitioned for reinstatement ahead of the assignee, contending the skip was unsupported. The Harbormaster denied the petition on 2 July 2018, reasoning that the District "acted on the best information then available." This appeal followed.

II. Issues Presented

1. Whether a skip entered against the next-ranked applicant is valid where the District holds no contemporaneous record establishing the reason for the skip.
2. Whether the District may rely on information concerning a vessel the applicant does not own to establish that the applicant's vessel of record does not fit the vacancy.
3. The remedy, if any, where the slip has been accepted by a lower-ranked applicant in the interim.

III. Findings of Fact

1. The appellant's vessel of record on 14 May 2018 was the MONARCH GALE, 31.9 feet length overall, measured at check-in 3 April 2015 and rounded up to 32 feet for billing purposes. That measurement had never been amended.
2. Slip LP-0217 is posted at 32 feet. A vessel of 32 feet billable length may be assigned to a 32-foot covered slip under the District's practice of assigning vessels up to the posted slip length.
3. The broker's listing for the WESTERLY CALL was furnished by the appellant in March 2018 in the course of an inquiry about a future vessel substitution. No substitution was ever executed; no application to amend the recorded vessel particulars was made; the register shows no amendment.
4. The skip event register for 14 May 2018 records the reason code but no supporting document. The clerk who entered the skip no longer works for the District and did not testify. The counter day log for that date shows the slip was worked between 10:40 and 11:15 a.m. and shows two crossed-out initials before the entry was settled.
5. The Harbormaster conceded at the hearing that the District's file did not contain, on the day the slip was worked,

any record showing that the MONARCH GALE did not fit slip LP-0217.

III-A. Standard of Review

The Commission reviews the Harbormaster's denial of reinstatement for abuse of discretion, and the underlying skip de novo as to the sufficiency of the record. The District, as the party departing from rank order, bears the burden of showing that the departure was justified on the record as it stood when the slip was worked. The Commission does not consider materials first assembled after the assignment, and it does not substitute its judgment for that of counter staff where the contemporaneous file is complete; the inquiry here is whether the file existed and what it contained.

IV. Conclusions of Law

1. The 2014 tariff, like the resolution that preceded it, requires offers to be made in waiting-list rank order. A skip is an exception to rank order and is therefore construed strictly against the District.
2. The District's power to skip carries with it a duty to make and keep, at the time the slip is worked, a record sufficient to show the reason. A reason that exists only in the recollection of staff is not a record. Where the contemporaneous record does not establish the reason, the skip cannot be sustained.
3. The vessel of record is the vessel whose particulars appear in the register. Information about a vessel the applicant has merely contemplated acquiring is not a particular of record and may not be used to establish a fit-based skip. To hold otherwise would let the register be impeached by rumor.
4. The appellant's skip of 14 May 2018 therefore cannot stand. Because slip LP-0217 was accepted in good faith by a lower-ranked applicant before the appeal was filed, the assignment itself will not be disturbed; equity limits the remedy to prospective relief.

IV-A. Analysis of the First Issue -- The Contemporaneous File

The District argues that an administrative practice of keeping slip-work records in the day log satisfies any documentation duty. We disagree. The day log shows that a slip was worked and by whom; it does not show why the next-ranked applicant was passed. The reason code standing alone is a conclusion, not a record. If a bare code sufficed, the register could never be checked against the facts, and rank order would depend on the memory of whoever happened to be at the counter. The 2014 tariff required offers in rank order; the departure from that order must be capable of verification on the day it occurs.

The District also argues that assembling a file after the fact would cure any defect. That is precisely backwards. A file assembled later may prove what staff later believed; it cannot prove what the file contained on the day the slip was worked. The controlling moment is the working of the slip, because that is the moment rank order is disturbed.

IV-B. Analysis of the Second Issue -- The Vessel of Record

The register exists so that neither applicants nor the District must rely on recollection or surmise. What governs an offer or a skip is the vessel of record -- the name, dimensions, and particulars entered and, where required, measured. The WESTERLY CALL was never the appellant's vessel of record. No amendment was entered; no substitution was executed. A broker's listing describing a vessel an applicant does not own cannot supply a particular of record, and a fit-based skip premised on it is unsupported by definition.

The Commission is aware that applicants occasionally discuss prospective purchases at the counter. Staff may note such discussions; they may not treat them as amendments. If the District wishes to act on a prospective vessel, the applicant must amend the register in the ordinary way, and the amendment must be the one acted upon.

IV-C. Analysis of the Third Issue -- Remedy

The assignee of slip LP-0217 accepted the slip in good faith, paid the required fees, and relocated a vessel. Unwinding that assignment five months later would punish the wrong party and would unsettle every assignment made in the interim. The Commission's practice in analogous cases is to leave the completed assignment in place and to restore the wronged applicant to the position the applicant would have occupied: first offer of the next matching vacancy, with rank and application date intact. That remedy is granted here.

The Commission further concludes that a direction to staff is warranted so that the defect does not recur. The direction set out in the order requires a justification file for every skip and identifies what the file must contain. The Commission does not prescribe a form; it prescribes the minimum contents and the controlling moment -- the day the slip is worked.

V. Order

1. The appeal is UPHELD IN PART. The skip entered against the appellant on 14 May 2018 is void and shall be expunged from the register.
2. The appellant's waiting-list rank and application date are confirmed as if the skip had not occurred; he shall be treated as next in rank for the next covered slip of 32 feet or greater in Ledgport matching his recorded preferences, and shall receive the first such offer.
3. The assignment of slip LP-0217 is not disturbed.
4. The Harbormaster is directed to issue a standing order requiring that every skip be supported, on the day the slip is worked, by a justification file containing the cover sheet and the supporting record relied upon, and that the day log entry identify the slip worked, the date, and the clerk.
5. No costs are awarded. This order is final for purposes of further appeal to the Superior Court within thirty (30) days.

The Commission notes for the guidance of staff that the principle applied here -- that a skip stands or falls on the file as it existed when the slip was worked -- is the same principle the Commission expects to see honored in the justification files kept under Schedule C.

Separate Statement of Commissioner Nystrom

I join the order in full. I write separately to note that the District's difficulty in this case began with handwriting and memory rather than with any intent to favor one applicant over another. The register and the day log are the District's institutional memory; when they are kept completely and contemporaneously, disputes of this kind resolve themselves. I expect the standing order directed by the Commission to make the file the first thing assembled on the day a slip is worked, not the last.

President of the Board: Arlene Whitlock, President, Position 2

Attest: Dolores Ivers, District Clerk / Commission Secretary